

Service Agreement

HERERA
SMALL BUSINESS TOOLKIT

A plain-language agreement for freelance and small-service work. Fill in the brackets, delete what does not apply, and keep a signed copy.

THE PROVIDER

NAME / BUSINESS

ADDRESS

EMAIL

PROJECT

START DATE

AGREEMENT DATE

THE CLIENT

NAME / COMPANY

ADDRESS

EMAIL

TERMS

1 Scope of work

The provider will deliver the work described in the attached proposal dated [____], which forms part of this agreement. Anything not written in that proposal is outside the scope of this agreement.

2 Fees

The total fee for the work is [____]. Prices are exclusive of tax unless stated otherwise.

3 Payment schedule

A non-refundable deposit of
50%

is payable before work begins. The balance is due on delivery, within
7 days

of the final invoice date. The provider is not obliged to begin or continue work while any payment is outstanding.

4 Late payment

Balances unpaid after the due date may carry a late fee of
5%

per week. Work may be paused, and delivered files withheld, until the account is settled.

5 Revisions

The fee includes
two

rounds of revisions. A round means one consolidated set of feedback. Further rounds, or changes requested after final approval, are billed at [____] per hour.

6 Changes to scope

Either party may propose a change to the scope. Changes only take effect once both parties agree the revised work, price and timeline in writing.

7 Client responsibilities

The client will supply all content, access, approvals and materials the work depends on, and will respond to requests for feedback within

5 working days

. The provider is not responsible for delays caused by late materials or feedback.

8 Inactivity

If the client is unreachable for

30 consecutive days

, the project may be treated as paused. Restarting it may require a rescheduling fee and a new timeline based on the provider's availability at that time.

9 Ownership

On receipt of final payment in full, ownership of the final delivered work transfers to the client.

Until then, all rights remain with the provider. Working files, source materials and unused concepts remain the property of the provider unless separately agreed in writing.

10 Third-party materials

Fonts, stock imagery, plugins and similar licensed assets are licensed to the client at the client's cost, under those third parties' terms. Ongoing licence renewals are the client's responsibility.

11 Portfolio rights

The provider may show the completed work in a portfolio, on social media and in marketing materials, unless the client asks in writing for it to be kept private.

12 Confidentiality

Each party will keep the other's non-public business information confidential, and will not share it with anyone except where the law requires it.

13 Cancellation

Either party may end this agreement in writing. If the client cancels, the deposit is not refunded and any work completed beyond the deposit is invoiced at the agreed rate. If the provider cancels, any fees paid for work not yet delivered are refunded.

14 Independent contractor

The provider is an independent contractor, not an employee, and is responsible for their own taxes, insurance and equipment.

15 Limitation of liability

Neither party is liable for indirect or consequential losses. The provider's total liability under this agreement is limited to the total fees actually paid by the client.

16 Governing law

This agreement is governed by the laws of [____], and both parties agree to that jurisdiction.

17 Whole agreement

This document and the attached proposal are the entire agreement between the parties and replace any earlier discussions. Changes must be in writing and signed by both.

PROVIDER

SIGNATURE

NAME

DATE

CLIENT

SIGNATURE

NAME

DATE

Not legal advice. This template is a plain-language starting point, not a document tailored to your country, your industry or your situation. For high-value or high-risk work, have a qualified lawyer in your jurisdiction review it before you rely on it.